

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
ARNARDO VARGAS, Jr.,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. JACK M. LOPEZ,
SGT. VINCENT A. NEVLING, P.O. JOSE L. RIVERA
and OFFICERS JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers unknowable by Plaintiff, Individually and in their
official capacities,

The basis of venue is:
CPLR 504 (3)

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint to be assessed by the Court.

Dated: Bronx, N.Y.

December 5, 2024



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. JACK M. LOPEZ, Shield 25935; SGT. VINCENT A. NEVLING Shield 4155; JOSE L. RIVERA Shield 24650
40th Precinct 257 Alexander Avenue, Bronx NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ARNARDO VARGAS, Jr.,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. JACK M. LOPEZ,
SGT. VINCENT A. NEVLING, P.O. JOSE L. RIVERA and
OFFICERS JOHN AND JAMES DOE, names being fictitious
and meant to designate additional offending officers
unknowable by Plaintiff, Individually and in their official capacities,

Defendants.

-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF ARNARDO VARGAS, Jr. INCLUDING THE VIOLATION OF CIVIL
RIGHTS PURSUANT TO 42 USC §1983

1. At the time of the commencement of this action, plaintiff ARNARDO VARGAS, Jr. was and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

3. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about July 28, 2024, P.O. JACK M. LOPEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about July 28, 2024, at approximately 7 P.M., P.O. JACK M. LOPEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about July 28, 2024, SGT. VINCENT A. NEVLING was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about July 28, 2024, at approximately 7 P.M., SGT. VINCENT A. NEVLING was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about July 28, 2024, P.O. JOSE L. RIVERA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about July 28, 2024, at approximately 7 P.M., P.O. JOSE L. RIVERA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about July 28, 2024, OFFICERS JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiff, but are necessarily known to Defendants by virtue of their involvement with the arrest and prosecution of Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about July 28, 2024, at approximately 7 P.M., OFFICERS JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police OFFICERS, and under the color of law.

13. That on or about July 28, 2024 at approximately 7 P.M., at or near the vicinity of East 165th Street and River Avenue, Bronx NY, ARNARDO VARGAS, Jr. was improperly stopped, assaulted, confined and arrested without warrant, without privilege, proper authority or justification, having no reason in law or in fact to arrest or confine ARNARDO VARGAS, Jr..

14. That immediately prior to the time mentioned above, the plaintiff ARNARDO VARGAS, Jr. was lawfully present at the above location.

15. That at the time and place aforementioned the Plaintiff had been instructed by police officers to keep walking along with a crowd of people leaving the Dominican Day Parade.

16. That Plaintiff complied and continued to walk in the direction he was instructed to walk toward.

17. That Plaintiff and SGT. VINCENT A. NEVLING then engaged in a verbal dispute while Plaintiff continued to walk in the direction he was directed to walk.

18. That in an escalating the verbal dispute, SGT. VINCENT A. NEVLING said, amongst other statements "What are you going to do?" in a confrontational tone, at least five times.

19. That the SGT. VINCENT A. NEVLING then continued to escalate the encounter by repeatedly shoving Plaintiff backwards.

20. That SGT. VINCENT A. NEVLING and P.O. JACK M. LOPEZ then continued to escalated the encounter and repeatedly and brutally punched and struck plaintiff about the head and body.

21. That SGT. VINCENT A. NEVLING and P.O. JACK M. LOPEZ repeatedly and brutally punched and struck plaintiff about the head and body and were joined by OFFICERS JOHN AND JAMES DOE who continued the assault and battery of Plaintiff.

22. That the Defendants, their agents, servants and/or employees arrested the Plaintiff ARNARDO VARGAS, Jr., incorrectly arrested as Junior Vargas, without any basis in law or fact and without reasonable, probable or just cause or justification.
23. That the defendants, their agents, servants and/or employees arrested the plaintiff ARNARDO VARGAS, Jr. without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
24. That Defendants, their agents, servants and/or employees continued to detain Plaintiff ARNARDO VARGAS, Jr. without his consent and threatened and denied his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.
25. That said arrest was unlawful, and that any touching, constraint and search of plaintiff was likewise unlawful.
26. That OFFICERS JOHN AND JAMES DOE, failed to intercede in the arrest of Plaintiff despite having known, or having should have have known, his arrest was unlawful and lacking in a probable cause.
27. That the Defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff ARNARDO VARGAS, Jr., who

was aware of his unlawful detention and confinement and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

28. That the defendants P.O. JACK M. LOPEZ and POLICE OFFICERS JOHN AND JAMES DOE did knowingly and maliciously provide false information to the prosecutor of the criminal action against Plaintiff.

29. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest plaintiff without probable or reasonable cause or warrant, intended to and did confine plaintiff without his consent, which non-privileged confinement plaintiff was consciously aware of and did attempt to initiate a criminal proceeding without probable cause with actual malice.

30. That the District Attorney of Bronx County, by Assistant District Attorney Martin N. Profeta-Bascombe declined to prosecute Plaintiff on August 15, 2024.

31. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and wide-spread practice of arresting innocent residents for resisting arrest and for similar charges such as Disorderly Conduct or Obstruction of Governmental Administration, after police officers assaulted those innocent residents; and promoting assaults upon persons who have not committed any crime, and then arresting and

charging those innocent persons with resisting arrest or similar charges without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the ill-fated attempts at justifying their own wrongful assaults; the subjugation of mostly male populations of color; the fulfillment of arrest quotas and/or enhancement of employment opportunities, and without reprimand to the offending officers.

32. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigations to deter actions like those complained of herein.

33. There is a long history of failed attempts at remedying the system of discipline attempting to address the pervasive police misconduct within the New York City Police Department. For instance, on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf. That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of

abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was also evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

34. Through the years multiple reports and commissions, even going back to the Mollen Commission Report, have tried in vain to address the repeated and ongoing problem of the lack of effective discipline of officers of the New York City Police Department and the resultant continued violations of the rights of New Yorkers to not be subjected to police misconduct. Recent reports, such as the September 19, 2024 “Report to the Court on Police Misconduct and Discipline” by James Yates, and respectfully incorporated herein, demonstrate the ongoing and futile efforts to reform the misconduct pervasive in the New York City Police Department and its deleterious effect on the rights of New Yorkers, especially young men of color.

35. Additionally there is a well documented history of wrongful seizures. Said policy, practice and procedure of proving officers who should be instead disciplined and of having arrest quotas, euphemistically known as productivity goals, results in the false arrests of innocent persons and is exhibited, for instance, in the November 1, 2011

conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin

Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

36. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas and enhance employment opportunities. Said arrest quotas lead to a practice and wide spread procedure of, for instance, arresting persons for conduct that is not unlawful.

37. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department. Multitudes of civilian complaints and lawsuits have done little to stem the tide of police misconduct.

38. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

39. The herein above described actions and omissions, engaged in under the color

of law by the defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, deprived the Plaintiff ARNARDO VARGAS, Jr. of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

40. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

41. That as a result of the foregoing, the Plaintiff ARNARDO VARGAS, Jr. was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF ARNARDO VARGAS, Jr. UNDER COMMON LAW

42. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 41 as though more fully set forth herein.

43. That on August 23, 2024, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

44. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant,

45. That defendant CITY OF NEW YORK did not demand, request or notice a General Municipal Law §50h hearing of plaintiff, and more than 90 days have passed since presentation of the Notice of Claim.

46. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

47. That on or about July 28, 2024 at approximately 7 P.M., at or near the vicinity of East 165th Street and River Avenue, Bronx NY, the Plaintiff ARNARDO VARGAS, Jr. was assaulted, improperly arrested, subjected to unwanted touching and restraint, and

confined without knowledge of warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest ARNARDO VARGAS, Jr..

48. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiff ARNARDO VARGAS, Jr. of Due Process under Law.

49. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, P.O. JACK M. LOPEZ, SGT. VINCENT A. NEVLING, P.O. JOSE L. RIVERA and OFFICERS JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the Defendants' actions amounted to False Arrest, and the Defendants were otherwise careless, reckless and negligent.

50. That the Plaintiff ARNARDO VARGAS, Jr., being aware of his unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, P.O. JACK M. LOPEZ, SGT. VINCENT A. NEVLING, P.O. JOSE L. RIVERA and OFFICERS JOHN AND/OR JAMES DOE.

51. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

52. That as a result of the foregoing, the plaintiff ARNARDO VARGAS, Jr. was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF ARNARDO VARGAS, Jr.

FOR ASSAULT AND BATTERY AND/OR UTILIZING EXCESSIVE FORCE

53. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 52 as though more fully set forth herein.

54. That during his aforesaid arrest, the defendants, their agents, servants and/or employees utilized unnecessary, excessive and unjustified force against the plaintiff.

55. That the actions herein described, by the defendants, their agents, servants and/or employees, constituted assaults and battery upon Plaintiff.

56. As a result of the aforesaid assaults, plaintiff CARLOS DEJESUS received injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future

will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

57. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

58. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

59. That as a result of the foregoing, the plaintiff CARLOS DEJESUS was damaged in a sum which exceeds the jurisdiction of all lower Courts

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF ARNARDO VARGAS, Jr.

FOR NEGLIGENT HIRING, TRAINING AND RETENTION

60. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 59 as though more fully set forth herein.

61. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

62. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and /

or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and use of force.

63. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiff ARNARDO VARGAS, Jr. was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiff and for the purchase of drugs and medicines, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual vocation and avocations; all to the Plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

64. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF ARNARDO VARGAS, Jr. UNDER N.Y.C. LAW:

VIOLATION OF AC-8-8802 RIGHTS – UNREASONABLE SEARCH & SEIZURE

65. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 64 as though more fully set forth herein.

66. The acts of defendants P.O. JACK M. LOPEZ, SGT. VINCENT A. NEVLING, P.O. JOSE L. RIVERA and OFFICERS JOHN AND/OR JAMES DOE constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

67. The acts of P.O. JACK M. LOPEZ, SGT. VINCENT A. NEVLING, P.O. JOSE L. RIVERA and OFFICERS JOHN AND/OR JAMES DOE caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

68. Defendants P.O. JACK M. LOPEZ, SGT. VINCENT A. NEVLING, P.O. JOSE L. RIVERA and OFFICERS JOHN AND/OR JAMES DOE, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully seized, repeatedly assaulted and battered plaintiff, and searched the plaintiff, before detaining plaintiff and further causing his detention for a period exceeding approximately six (6) hours in total.

69. By reason of the acts and omissions by defendants P.O. JACK M. LOPEZ, SGT. VINCENT A. NEVLING, P.O. JOSE L. RIVERA and OFFICERS JOHN AND/OR JAMES

DOE as described above, plaintiff has endured *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and was otherwise damaged and/or injured.

70. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

71. That as a result of the foregoing, the Plaintiff ARNARDO VARGAS, Jr. was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF ARNARDO VARGAS, Jr. UNDER N.Y.C. LAW

VIOLATION OF AC-8-8802 RIGHTS – FAILURE TO INTERVENE

72. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 71 as though more fully set forth herein.

73. Defendants P.O. JACK M. LOPEZ, SGT. VINCENT A. NEVLING P.O. JOSE L. RIVERA and OFFICERS JOHN AND/OR JAMES DOE had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against

unreasonable searches and seizures and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

74. The defendants that did not engage in the unreasonable search and seizure of plaintiff against plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants P.O. JACK M. LOPEZ and OFFICERS JOHN AND/OR JAMES DOE failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from a violation of his rights.

76. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

77. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

78. That as a result of the foregoing, the Plaintiff ARNARDO VARGAS, Jr. was damaged in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third, Fourth, Fifth and Sixth Causes of Action, and inclusive of punitive damages as applicable to the individual defendants, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.

December 5, 2024



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

ARNARDO VARGAS, Jr.

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL

100 Church Street, 4th Floor, Law Dept.

New York, New York 10007

P.O. JACK M. LOPEZ, Shield 25935; SGT. VINCENT A. NEVLING Shield 4155; JOSE L. RIVERA Shield 24650

40th Precinct 257 Alexander Avenue, Bronx NY 10454

**PLAINTIFF'S VERIFICATION
pursuant to CPLR Rule 2106**

ARNARDO VARGAS, Jr. affirms the following to be true under the penalties of perjury:

I am the Plaintiff in the within action and have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

I affirm this 5th day of December, 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.



ARNARDO VARGAS, Jr.